

WRITTEN ARGUMENTS ON BEHALF OF THE COMPLAINANT

Matter: CC/441/2025

POINTS FOR DETERMINATION

- (i) Whether an unanswered field in a Proposal Form, without more, amounts to suppression of a material fact sufficient to repudiate a claim.
- (ii) Whether the factual basis of the repudiation, namely the alleged hypertension diagnosis, is established on the record.
- (iii) Whether the Opposite Party is guilty of deficiency in service and unfair trade practice.

SUBMISSIONS

On point (i): It is settled that suppression of a material fact requires proof that the fact existed and was within the proposer's knowledge at the time of the proposal. A blank answer is, at best, ambiguous and cannot by itself establish either element.

On point (ii): The Opposite Party's own documents are internally inconsistent: the Repudiation Letter (Annexure A-5) states the alleged diagnosis was recorded on 14.02.2021, while the Investigator's Report (Annexure A-6) records the same note as dated 24.02.2021. More tellingly, Sassoon General Hospital's own reply dated 15.07.2025 (filed with the Rejoinder) confirms that its OPD register shows no entry for the Life Assured on either date.

Further, the Opposite Party's own contemporaneous Underwriting File Note dated 25.04.2022 (Annexure R-2 to the Written Version) shows that the blank field was noticed at inception and the proposal was accepted without query, undermining any suggestion that the omission was material to the risk.

On point (iii): Repudiation of a genuine claim four years into the currency of a fully paid-up policy, on a factually unsustainable ground, is a textbook case of deficiency in service within the meaning of Section 2(11) of the Consumer Protection Act, 2019.

PRAYER

It is respectfully prayed that the complaint be allowed as prayed for, with interest, compensation and costs.

Filed on 20.01.2026